

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
MICHAEL HENRY,

Plaintiff,

SUMMONS

-against-

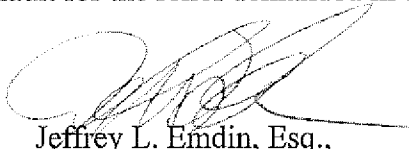
THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
TRAN MINH, 44TH PCT, SHIELD #16458,
INDIVIDUALLY AND AS A POLICE OFFICER
AND "JOHN/JANE" DOES #1-10, POLICE OFFICERS
IDENTITIES UNKNOWN,Defendants.
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Index No.:

Date Purchased:

Plaintiff designates Bronx
County as the place of trial.
The basis of the venue is place
where the cause of action arose.**To the above named Defendant(s):**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons, exclusive of the day of service, (30) days after the service is complete, if the summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
This 16th day of March, 2022
Jeffrey L. Emdin, Esq.,
Attorney for Plaintiff
330 West 38th Street Suite 302
New York, New York 10018
(212) 265-1350

Defendants address:

City of New York
c/o Office of the Corporation Counsel,
City of New York
100 Church Street
New York, New York 10007

The New York City Police Department
1 Police Plaza
New York, New York 10038

Police Officer Tran Ming, Shield #16458
44th Precinct
2 East 169th Street
Bronx, New York 10452

“John/Jane Does” #1-10
Identities Unknown
44th Precinct
2 East 169th Street
Bronx, New York 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

MICHAEL HENRY,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER TRAN
MINH, 44TH PCT., SHIELD #16458, INDIVIDUALLY
AND AS A POLICE OFFICER AND "JOHN/JANE"
DOE #1-10 POLICE OFFICERS, IDENTITIES
UNKNOWN,

Defendants.

-----X

VERIFIED COMPLAINT

Index No.:

Date Purchased:

Plaintiff designates Bronx
County as the place of trial.
The basis of the venue is place
where the cause of action arose.

The plaintiff, Michael Henry, by his attorney, The Law Office of Jeffrey L. Emdin, complaining of the defendants, respectfully shows to this court and alleges:

1. Upon information and belief, that at all times hereinafter mentioned, the defendant, The City of New York, hereinafter referred to as "City", was, and still is, a municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York.

2. Upon information and belief, at all times hereinafter mentioned, the defendant, the City of New York, i.e. "City", its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, hereinafter referred to as "NYPD", including all the police officers therein.

3. Upon information and belief, at all times hereinafter mentioned and on the 12th day of August, 2021, P.O. Tran Minh, hereinafter referred to as "Minh" was employed as a Police Officer by the "City" and/or "NYPD" and upon information and belief assigned to the 44th Pct, and at all relevant times set forth below acted in the capacity of a police officer.

4. Upon information and belief, at all times hereinafter mentioned and on the 12th day of August, 2021, Minh was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or employee, and required to follow the Patrol Guidelines of the New York City Police Department, then in effect.

5. Upon information and belief, at all times hereinafter mentioned, and on the 12th

day of August, 2021, Police Officers John or Jane Does #1-10, hereinafter referred to as "Does" were employed as Police Officers by the "City" and/or "NYPD" and at all relevant times set forth below, acted in the capacity of a police officer. At present their true identities are unknown.

6. On the 12th day of August, 2021, plaintiff, Michael Henry, hereinafter referred to as "Henry" and/or "plaintiff" was a resident of the State of New York, County of Bronx.

7. That on August 12, 2021 at approximately 1:00 p.m., the plaintiff, Henry, was lawfully at BJ Wholesalers, located at Bronx Terminal market, Bronx, New York, hereinafter referred to as "the location".

8. At that time, place and location other civilians were also present.

9. At that time and location, Ming and the Does, hereinafter collectively referred to as the "officers" were on duty as New York City Police Officers and responded to the location.

10. The plaintiff was not engaged in any criminal activity at any time at the aforementioned date, time and location.

11. Upon information and belief, the officers responded to a call for assistance due to a fight between females.

12. At no time was the plaintiff involved in the fight.

13. The location had operational video cameras throughout the location.

14. At one point officers attempted to arrest the plaintiff, despite not seeing him engaged in any criminal activity.

15. As officers attempted to grab Henry, numerous individuals yelled out that he (plaintiff) didn't do anything.

16. Nevertheless officer grabbed Henry and violently threw him against a wall/gate and aggressively handcuffed him causing serious injury and pain to Henry's person.

17. Plaintiff was handcuffed and arrested.

18. Plaintiff was screaming in pain and placed in a patrol car with windows closed. Plaintiff, who is claustrophobic pleaded to lower the windows. Finally after approximately ten minutes an officer raked the window open.

19. The plaintiff wanted to go to the hospital but was dissuaded from going by the officers who informed plaintiff that he would be held longer if he went.

20. Plaintiff was handcuffed to a pole inside the precinct, before being placed in a locked holding cell.

21. The plaintiff was held in custody for approximately nine (9) hours before being released with a Desk Appearance Ticket, #044-05141, falsely charging him with resisting arrest.

22. Upon his release, the plaintiff went to the hospital for treatment of his injuries.

23. Plaintiff hired counsel to defend him from the false charges, incurring legal fees.

24. All criminal charges were dismissed on November 30, 2021, under Docket # CR-012260-BX.

25. That notice of the plaintiff's claim and notice of intention to sue for damages, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose were timely and duly served upon the comptroller of the defendant "City".

26. That a 50(h) hearing of the plaintiff was held. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

27. That this action is commenced within one year and 90 days after the cause of action arose.

28. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the exemptions provided in CPLR 1602.

AS AND FOR A FIRST CAUSE OF ACTION
FOR FALSE IMPRISONMENT AGAINST ALL DEFENDANTS

29. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "28" with the same force and effect as if more fully and at length set forth herein.

30. That beginning on or about the 12th day of August, 2021, at or about approximately 1:00 p.m, at or near the "location" until the plaintiff's release from custody approximately nine (9) hours later, the defendants, their agents, servants and/or employees detained and imprisoned the plaintiff without any just cause or grounds.

31. That Henry's imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process, and without authority of the law and without any reasonable grounds, or cause to believe that the plaintiff was guilty of any crimes for which he was charged.

32. Henry was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

33. That the defendants, their agents, servants and/or employees, as set forth above, intended to confine the plaintiff; the plaintiff was conscious of the confinement; he did not consent to the confinement; and the confinement was not otherwise privileged.

34. That all said conduct was committed by the defendants within the scope of their employment with the City of New York and/or the New York City Police Department.

35. That by reason of the aforesaid false imprisonment and detention, Henry was subjected to great indignity, humiliation, pain, suffering and loss of freedom and the said plaintiff has been otherwise damaged.

36. That by reason of the aforesaid, Henry has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A SECOND CAUSE OF ACTION
FOR FALSE ARREST AGAINST THE NAMED DEFENDANTS

37. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "36" with the same force and effect as if more fully and at length set forth herein.

38. That beginning on or about the 12th day of August, 2021, at or about approximately 1:00 p.m. at the "location", the plaintiff, was seized, handcuffed and placed under arrest by the defendants, their agents, servants and/or employees without any just cause or grounds, and held against his will under full force of arms.

39. That said arrest was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, when the defendants lacked cause to believe that Henry committed, or was about to commit a crime or was guilty of any crimes.

40. Plaintiff was wholly innocent of all criminal charges and did not contribute in any

way or manner to his arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

41. That the defendants, their agents servants and/or employees, as set forth above, intended to arrest Henry; that the plaintiff was conscious of the arrest and confinement; the Plaintiff did not consent to the arrest and confinement; and the arrest was not otherwise privileged.

42. That all said conduct was committed by the defendant officers was within the scope of their employment with the City of New York and/or the New York City Police Department.

43. That by reason of the aforesaid false arrest, the plaintiff, Henry was subjected to great indignity, humiliation, stress and loss of freedom and the said plaintiff has been otherwise damaged.

44. That by reason of the aforesaid, Henry has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A THIRD CAUSE OF ACTION
FOR ASSAULT AND BATTERY AGAINST THE DEFENDANTS

45. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "44" with the same force and affect as if more fully and at length set forth herein.

46. On August 12, 2021 at the location Henry was seized, thrown to the wall, grabbed, kneed, handcuffed, had his arms violently pulled back and upward, threatened and physically touched by the defendant, "City", and the "NYPD" its agents/servants, and/or employees, including defendant "officers".

47. That all said contact was committed without the plaintiff's permission or consent.

48. That all said contact was unlawful and without privilege.

49. That the use of force was without justification.

50. That all contact committed by defendants through their agents, servants, and/or employees, including defendant officers, was offensive to Henry and caused him to fear further contact and imminent harm, and caused plaintiff to sustain physical and/or emotional trauma.

51. That all said conduct was committed by the officers was within the scope of their employment with the City of New York and/or the New York City Police Department.

52. That the above acts committed by the defendants constituted an assault and/or battery of the plaintiff.

53. That by reason of the aforesaid, plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A FOURTH CAUSE OF ACTION
FOR EXCESSIVE USE OF FORCE

54. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "53" with the same force and affect as if more fully and at length set forth herein.

55. That all the aforementioned contact committed by the officers was committed without Henry's permission or consent.

56. That all said contact was unlawful and without privilege.

57. That the use of force was without justification.

58. That the use of force was excessive and beyond the means necessary to effectuate Henry's arrest.

59. At no time did any of the officers present intervene, stop, mitigate or prevent the excessive use of force from occurring, although they were present and had the means to do so.

60. That all contact committed by defendants through their agents, servants, and/or employees, including defendants "officers", was offensive to the plaintiff and caused him to fear further contact and imminent harm, and caused plaintiff Henry to sustain physical and/or psychological injury.

61. That the above acts committed by the defendants constituted an assault and/or battery through the use of excessive force of Henry.

62. That by reason of the aforesaid, plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A FIFTH CAUSE OF ACTION
FOR MALICIOUS PROSECUTION

63. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "62" with the same force and affect as if more fully and at length set forth herein.

64. That plaintiff was maliciously prosecuted by the defendants, and was at all times wholly innocent of the crimes alleged.

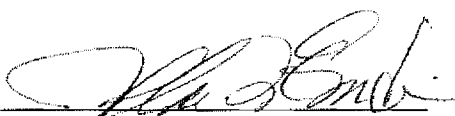
65. That all criminal charges were dismissed against the plaintiff on November 30, 2021.

66. That plaintiff incurred Six Thousand Dollars (\$6,000.00) in legal fees in defending against the false charges.

67. That by reason of the aforesaid, plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

WHEREFORE, the plaintiff demands judgment against the defendants in a sum to be determined by the trier of fact, plus costs, attorney's fees, punitive damages (on the sixth cause of action) and such other and further relief as to the Court seems just and proper on the First through the Sixth causes of action.

DATED: New York, New York
March 16, 2022


Jeffrey L. Emdin, Esq.,
Law Office of Jeffrey L. Emdin
Attorneys for the Plaintiff
330 West 38th Street, Suite 302
New York, New York 10018
(212) 265-1350

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

That I am the attorney of record for the Plaintiff in the within action; that I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Verified Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
March 16, 2022


Jeffrey L. Emdin, Esq.